

		of commitment can be issued without such previous attachment to answer, or such notice or order to show cause.” (Code Civ. Proc., § 1212.) The substantive issues involved in a contempt proceeding are: (1) rendition of a valid order, (2) knowledge of the order, (3) ability to comply with the order, and (4) willful disobedience. (<i>Wanke, Industrial, Commercial, Residential, Inc. v. Keck</i> (2012) 209 Cal.App.4th 1151, 1168.) The Court finds Michael has presented sufficient evidence that Plaintiff knows of the valid final judgment of this Court, her ability to comply with the judgment finding her to have no interest, possessory or otherwise in 2247 Meyer Place, Costa Mesa, CA 92627 or the Ferraris Online YouTube channel, and has willfully failed to comply with the order. (Leventhal Decl., ¶ 3-8.) The Court sets an Order to Show Cause why Colleen Sheehan should not be held in contempt on the ground she disobeyed this Court’s final judgment issued on December 3, 2025 for 8/4/26 at 9:00 a.m., in Dept.C32. Michael is ordered to personally serve the supporting declaration and the Order to Show Cause on Plaintiff. (<i>Cedars-Sinai Imaging Medical Group v. Superior Court</i> (2000) 83 Cal.App.4th 1281, 1286.) The proof of service must be filed at least 9 court days before the hearing.
7.	SALDIVAR VS. NGUYEN 2022-01257448	MOTION FOR RECONSIDERATION Cross-Complainant Alphonse Nguyen’s Motion for Reconsideration of the Court’s May 5, 2026 Order is DENIED. “When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (Code Civ. Proc., § 1008(a).) Nguyen has failed to identify any new or different fact, circumstance, or law which merits reconsideration of the prior order. Nguyen first claims the Court’s decision to not allow oral argument warrants reconsideration. However, Nguyen fails to provide any authority which supports his contention this constitutes a new or different fact. Nguyen claims there are legal errors in the Court’s ruling, however, this would amount to rearguing the merits of the motions and not presenting new or different facts, circumstances, or

		law unavailable at the time of making the motions. Nguyen’s claims the Court failed to apply the liberal policy in favor of allowing amendment, the Court failed to apply the ADA to Nguyen’s motions, the ruling failed to properly identify prejudice, and considered the merits of the pleadings are similarly attempts to reargue the merits of the motions and are not new or different facts. Additionally, Nguyen’s declaration in support of this Motion fails to state “what application was made before, when and to what judge, what order or decisions were made” (Code Civ. Proc., § 1008(a).) Thus, the Motion is procedurally defective. Accordingly, Nguyen’s Motion is denied.
8.	MAKA VS. AMERICAN HONDA MOTOR CO. INC. 2023-01325822	MOTION FOR ATTORNEY FEES Plaintiffs Lueleni Fetongi Maka and Mailah Miranda Solia’s Motion for Attorney Fees is GRANTED in the reduced amount of \$27,032. This Song-Beverly Act case, filed on 5/17/23, arises from Plaintiffs’ purchase of a 2018 Honda Pilot on 4/9/21. Notice of Settlement was filed 7/8/24. Defendant’s objections are SUSTAINED as to Nos. 39-49. The remaining objections are OVERRULED. <u>Legal Standard</u> If a plaintiff prevails in a Song-Beverly action, they “shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794, subd. (d).) Courts use the lodestar adjustment method to determine the amount of attorney’s fees to award in Song-Beverly actions. (<i>Reynolds v. Ford Motor Co.</i> (2020) 47 Cal.App.5th 1105, 1112.) The lodestar figure is “based on the careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case.” (<i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1131-1132 (<i>Ketchum</i>).) That figure may be increased or decreased by a “multiplier” based on factors, including (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (<i>Id.</i> at p. 1132; <i>Mikhaeilpoor v. BMW of North America, LLC</i> (2020) 48 Cal.App.5th 240, 247.) In challenging an attorney fees request, the burden falls upon the challenging party to point to specific items challenged, with